

5 Moral Knowledge

Part 1: Foundations of Ethical Intuitionism

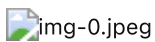
In the last three chapters, we have seen that moral claims are assertions about a class of irreducible, objective properties, which cannot be known on the basis of observation. How, if at all, can these claims be known? Is it rational to think any of these claims are true? In the present chapter, I explain how we can know or be justified in believing evaluative statements on the basis of ethical intuition.

5.1 The principle of Phenomenal Conservatism

Other things being equal, it is reasonable to assume that things are the way they appear. I call this principle 'Phenomenal Conservatism' ('phenomenal' meaning 'pertaining to appearances'). I have discussed the principle elsewhere, so here I will be relatively brief.¹

There is a type of mental state, which I call an 'appearance', that we avow when we say such things as 'It seems to me that p', 'It appears that p', or 'p is obvious', where p is some proposition. Appearances have propositional contents—things they represent to be the case—but they are not beliefs, as can be seen from the intelligibility of, 'The arch seems to be taller than it is wide, but I don't think it is'. Nevertheless, appearances normally lead us to form beliefs. 'Appearance' is a broad category that includes mental states involved in perception, memory, introspection, and intellection. Thus, we can say, 'This line seems longer than that one', 'I seem to recall reading something about that', 'It seems to me that I have a headache', and 'It seems that any two points can be joined by a single straight line'.² All of those statements make sense, using the same sense of 'seems'.

Appearances can be deceiving, and appearances can conflict with one another, as in the Müller-Lyer illusion:



It initially seems that the top line is longer than the bottom line. But if you get out a ruler and measure them, you will find them to be of the same length. The top line will seem, when holding a ruler next to it, to be 2 inches long, and the bottom line will similarly appear to be 2 inches long. So, all things considered, it seems that the two lines are of the same length. As this example illustrates, an initial appearance can be overruled by other appearances (this does not mean the initial appearance goes away, but only that we don't believe it), and only by other appearances. Some appearances are stronger than others—as we say, some things are 'more obvious' than others—and this determines what we hold on to and what we reject in case of conflict. Presumably, it more clearly seems to you that the result of measuring the lines is accurate than that the result of eyeballing them is, so you believe the measurement result (this may have to do with background beliefs you have about the reliability of different procedures—which would themselves be based upon the way other things seem to you). Things can become complicated when many different beliefs and/or appearances are involved, but the basic principle is that we are more inclined to accept what more strongly seems to us to be true.

Appearances can be intellectual, as opposed to sensory, mnemonic, or introspective. It seems to us that the shortest path between any two points must be a straight line; that time is one-dimensional and totally ordered (for any two moments in time, one is earlier than the other); and that no object can be completely red and completely blue at the same time. I accept those things on intellectual grounds. I am not looking at all the possible pairs of points and all the possible paths connecting each pair and seeing, with my eyes, that the straight path is the shortest in each case. Instead, I am 'seeing' intellectually that it must be true—that is, when I think about it, it becomes obvious.

Logical judgments rest on intellectual appearances. We think the following inference logically valid (the premises entail the conclusion, regardless of whether the premises are true):

Socrates is a man.

All men are inconsiderate.

Therefore, Socrates is inconsiderate.

but the next one invalid:

Socrates is inconsiderate.

All men are inconsiderate.

Therefore, Socrates is a platypus.

We 'see' this, not with our eyes, but with our intellect or reason.

All judgments are based upon how things seem to the judging subject: a rational person believes only what seems to him to be true, though he need not believe everything that seems true.³ The function of arguments is to change the way things seem to one's audience, by presenting other propositions (premises) that seem true and seem to support something (the conclusion) that may not initially have seemed true to the audience. An argument has force only to the extent that its premises seem true and seem to support its conclusion. Intellectual inquiry presupposes Phenomenal Conservatism, in the sense that such inquiry proceeds by assuming things are the way they appear, until evidence (itself drawn from appearances) arises to cast doubt on this. Even the arguments of a philosophical skeptic who says we aren't justified in believing anything rest upon the skeptic's own beliefs, which are based upon what seems to the skeptic to be true.

This indicates in brief why I take any denial of Phenomenal Conservatism to be self-defeating. Be that as it may, we have already laid down in chapter 1 that general philosophical skepticism is off the table in the present discussion. Since all judgment and reasoning presupposes Phenomenal Conservatism, a rejection of Phenomenal Conservatism amounts to a general philosophical skepticism. Therefore, we assume Phenomenal Conservatism to be correct.

5.2 Ethical intuitions

Reasoning sometimes changes how things seem to us. But there is also a way things seem to us prior to reasoning; otherwise, reasoning could not get started. The way things seem prior to reasoning we may call an 'initial appearance'. An initial, intellectual appearance is an 'intuition'. That is, an intuition that p is a state of its seeming to one that p that is not dependent on inference from other beliefs and that results from thinking about p , as opposed to perceiving, remembering, or introspecting. An ethical intuition is an intuition whose content is an evaluative proposition.

Many philosophers complain either that they don't know what an intuition is or that the term 'intuition' is essentially empty and provides no account at all of how one might know something. I take it that these critics have just been answered.

Some question whether intuitions exist. We have seen some examples of intuitions in the previous section. Here are some examples in ethics:

Enjoyment is better than suffering.

If A is better than B and B is better than C , then A is better than C . It is unjust to punish a person for a crime he did not commit.

Courage, benevolence, and honesty are virtues.

If a person has a right to do something, then no person has a right to forcibly prevent him from doing that thing.

Prior to entertaining arguments for or against them, each of these propositions seems true. In each case, the appearance is intellectual; you do not perceive that these things are the case with your eyes, ears, etc. And they are evaluative. So the relevant mental states are ethical intuitions.

Here are some examples of ethical claims that, I take it, are not intuitive, even for those who believe them:

The United States should not have gone to war in Iraq in 2003.

We should privatize Social Security.

Abortion is wrong.

Though these propositions seem true to some, the relevant appearances do not count as 'intuitions' because they depend on other beliefs. For instance, the sense that the United States should not have invaded Iraq depends on such beliefs as that the war predictably caused thousands of deaths, that this is bad, that Iraq did not have weapons of mass destruction,

and so on. This is not to deny that intuition has a role in one's coming to the conclusion that the U.S. should not have gone to war. It is intuition that tells us that killing people is *prima facie* wrong. Intuition is also involved in the weighing of competing values—for instance, we may have intuitions about whether it is right to kill many people in order to depose a tyrant, if the facts of the case are as we believe them to be.

Some think that intuitions are just beliefs, and thus that 'intuition' does not name a way of knowing anything,⁸ for we do not want to say that merely by believing something, I know it. A more sophisticated worry is that what we think of as intuitions may be products of antecedently existing beliefs, perhaps via subconscious inferences. Perhaps 'Enjoyment is better than suffering' only seems true to me because I already believe it, or believe things from which it follows. There are two replies to these worries. First, the view that intuitions are or are caused by beliefs fails to explain the origin of our moral beliefs. Undoubtedly some moral beliefs are accounted for by inference from other moral beliefs. But since no moral belief can be derived from wholly non-moral premises, we must start with some moral beliefs that are not inferred from any other beliefs. Where do these starting moral beliefs come from? Do we just adopt them entirely arbitrarily? No; this is not the phenomenology of moral belief. We adopt fundamental moral beliefs because they seem right to us; we don't select them randomly.

Second, moral intuitions are not in general caused by antecedent moral beliefs, since moral intuitions often either conflict with our antecedently held moral theories, or are simply unexplained by them. Here are two famous hypothetical examples from the ethics literature:

Example 1: A doctor in a hospital has five patients who need organ transplants; otherwise, they will die. They all need different organs. He also has one healthy patient, in for a routine checkup, who happens to be compatible with the five. Should the doctor kill the healthy patient and distribute his organs to the other five?

Example 2: A runaway trolley is heading for a fork in the track. If it takes the left fork, it will collide with and kill five people; if it takes the right fork, it will collide with and kill one person. None of the people can be moved out of the way in time. There is a switch that determines which fork the trolley takes. It is presently set to send the trolley to the left. You can flip the switch, sending the trolley to the right instead. Should you flip the switch?⁹

Most people's intuitive answers are 'no' to example 1 and 'yes' to example 2. Some philosophers hold that the morally correct action is always the action with the best overall consequences. Their view implies that the answer to example 1 is yes. But even these philosophers, when confronted with the example, admit that their answer is counter-intuitive, that it seems wrong to kill the healthy patient and harvest his organs.¹⁰ One's intuitions do not simply follow along with what one believes about morality. Relatedly, most people have difficulty explaining why they feel inclined to answer one way in example 1, and the opposite way in example 2; both cases introduce the possibility of sacrificing one person to save five. Philosophers have proposed various explanations of this (which remain controversial). The point is that no moral theory held prior to considering cases such as those above is likely to afford us an explanation for why the sacrifice should be found unacceptable in example 1 but acceptable in example 2.

The point that intuition is often independent of belief is important, since it enables intuition to provide the sort of constraint needed for adjudicating between competing moral theories. If intuition simply followed moral belief, then it could not help us decide which moral beliefs are correct. But this point is compatible with intuition's showing some degree of responsiveness to our beliefs, and I do not want to claim that a person's intuitions will in general remain entirely uninfluenced by the theories they adopt. Compare the observation that sensory perceptions are largely, but not entirely, independent of our background beliefs—for example, even if I believe Big Foot does not exist, if Big Foot should walk up to me, I will still see him.

Among intuitive moral propositions, some are more intuitive than others. Compare the above two examples to the following:

Example 3: As in example 2, except that there is no one on the right fork; if the trolley goes down the right fork, it will run into a pile of sand which will safely stop it. Should you flip the switch?

Everyone answers 'yes' to this one, even those who answered 'no' to example 2. Our intuitions about example 3 are clearer and more certain than those about examples 1 and 2. This gives the belief that you should flip the switch in example 3 a higher level of justification than the corresponding beliefs about examples 1 and 2.

Upon hearing these examples, some people try to deny the intuitions I have noted by posing such problems as: 'In example 1, what if the healthy patient is the future mother of Josef Stalin?' 'In example 3, what if the five people on the left fork are suicidal people who went there to get run over and are just going to go find some other way to kill themselves?' And when

considering the intuition that enjoyment is better than suffering: 'What if the enjoyment is a sadistic or perverted pleasure?' The answer to all of these queries is the same: I stipulate that those things are not the case. In all of my examples, all conditions are to be assumed normal unless otherwise specified; likewise, most moral principles have an implicit 'in normal conditions' clause. The purpose of considering such examples is not to initiate a legalistic exercise in searching for loopholes in a statement and ways of filling such loopholes. Our present aim is simply to show the existence and nature of ethical intuitions.

Not all intuitions are equal—some are more credible than others. As the above remarks suggest, one reason for this is that some intuitions are simply stronger, or more clearly seem true, than others. Another reason is that some intuitions are more widely shared than others; other things being equal, an intuition that many disagree with is more likely to be an error than is an intuition that nearly everyone shares. Another reason is that some intuitions have simpler contents than others, and are therefore less prone to error. And there are various reasons why some kinds of intuitions may be more open to bias than others. These facts point to the conclusion that intuitions should not be embraced uncritically, and that conflicting intuitions should be weighed against each other taking into account our best judgments as to their relative levels of reliability. I shall return to this point in the following chapter, when we come to the question of resolving ethical disagreements (sections 6.4 and 6.6).

5.3 Misunderstandings of intuitionism

The intuitive propositions we've been discussing are *prima facie* justified. That is, we are justified in believing them unless countervailing evidence should arise that is strong enough to defeat the initial presumption in their favor. Such defeating evidence would consist either of evidence directly against the proposition that intuitively seemed true, or of evidence that our initial intuition was unreliable.

We can now see that at least one objection to intuitionism rests on a misconstrual of the doctrine. Karl Popper writes:

'Intuitionism' is the name of a philosophical school which teaches that we have some faculty or capacity of intellectual intuition allowing us to 'see' the truth; so that what we have seen to be true must indeed be true. It is thus a theory of some authoritative source of knowledge.

He goes on to criticize intuitionism on the grounds that intuitions can be mistaken and we should remain open to revising our ethical views.¹¹ Presumably he thinks intuitionists deny those things, but few if any intuitionists have done so, nor is there any reason why they should.¹² The same misunderstanding may be behind the occasional charge that intuitionism is 'dogmatic'.¹³ I do not wish to rule out (as Popper does) the possibility of some intuitions' being infallible; I simply deny that they must be infallible.

Tara Smith misunderstands intuitionism as the view that all moral truths are 'self-evident'. In fact, intuitionists hold *at most* that some moral truths are self-evident,¹⁴ and my own form of intuitionism holds only that some moral beliefs are rendered *prima facie* justified by intuitions. Thus, no problem for intuitionism is generated by citing examples of moral principles that rest on reasoning, nor by citing moral principles that are less than 100 per cent certain. Nor does intuitionism assert 'the irrelevance of argument' in general.¹⁵ Once we have a fund of *prima facie* justified moral beliefs to start from, there is great scope for moral reasoning to expand, refine, and even revise our moral beliefs, in exactly the manner that the contemporary literature in philosophical ethics displays.

Admittedly, critics of intuitionism have not been without excuse in the above misunderstandings.¹⁶ H. A. Prichard, a major figure in twentieth-century intuitionism, at least invited them, and perhaps in his case they were not even misunderstandings:

This realization of [our obligations'] self-evidence is positive knowledge, and so far, and so far only, as the term Moral Philosophy is confined to this knowledge and to the knowledge of the parallel immediacy of the apprehension of the goodness of the various virtues and of good dispositions generally, is there such a thing as Moral Philosophy?¹⁷

His use of the term 'self-evidence' encourages Popper's reading (though in fact he says all he means by 'self-evident' is 'non-derivative'), and the rest of the passage encourages Tara Smith's reading. But—leaving aside the interpretive question—a philosopher discussing a theory should address the strongest version of the theory, not the weakest. Granting the justification, on the basis of intuition, of common sense moral principles, there is no motivation stemming from any core assumption of intuitionism for denying that moral philosophy can construct further arguments, arriving at moral truths not

immediately evident. The analogy Prichard draws with mathematics should if anything suggest to us that derivative items of ethical knowledge might far outnumber intuitive ones.

Some may think that the *foundationalism* of intuitionism requires a doctrine of infallibility: that is, the idea that we can start from some moral principles, without having to justify them by argument, implies that those moral principles must be infallible, incorrigible, or the like. I have never been able to get anyone to tell me why this would be so.¹⁸ Why may we not hold our starting points open to revision in the event that tensions arise with other justified beliefs? Suppose I seem to see a glass of water on the table. That is enough for me to be justified in believing there is a glass of water, in the absence of any countervailing evidence. However, I may still hold this open to revision: if I reach for the 'glass' and find my hand passing through it, and if a dozen other people in the room say there is no glass there, I may decide there wasn't a glass there after all. As this example illustrates, we normally take perceptual beliefs to be *prima facie* justified, just as the principle of Phenomenal Conservatism dictates. There is no obvious obstacle to holding intuitive beliefs to be justified similarly.